

The European Data Protection Board

Having regard to Article 70 (1)(e) of the Regulation 2016/679/EU of the European Parliament and of

the Council of 27 April 2016 on the protection of natural persons with regard to the processing of

personal data and on the free movement of such data, and repealing Directive 95/46/EC, (hereinafter “GDPR”),

Having regard to the EEA Agreement and in particular to Annex XI and Protocol 37 thereof, as amended

by the Decision of the EEA joint Committee No 154/2018 of 6 July 2018¹,

Having regard to Article 12 and Article 22 of its Rules of Procedure,

Having regard to the Article 29 Working Party Guidelines on consent under Regulation 2016/679,

WP259 rev.01,

HAS ADOPTED THE FOLLOWING GUIDELINES

0 PREFACE

On 10 April 2018 the Article 29 Working Party adopted its Guidelines on consent under Regulation

2016/679 (WP259.01), which were endorsed by the European Data Protection Board (hereinafter

“EDPB”) at its first Plenary meeting. This document is a slightly updated version of those Guidelines.

Any reference to the WP29 Guidelines on consent (WP259 rev.01) should from now on be interpreted

as a reference to these guidelines.

The EDPB has noticed that there was a need for further clarifications, specifically regarding two

questions:

1

The validity of consent provided by the data subject when interacting with so-called “cookie walls”;

2

The example 16 on scrolling and consent.

The paragraphs concerning these two issues have been revised and updated, while the rest of the

document was left unchanged, except for editorial changes. The revision concerns, more specifically:

- Section on Conditionality (paragraphs 38 - 41).
- Section on Unambiguous indication of wishes (paragraph 86)

1 INTRODUCTION

1.

These Guidelines provide a thorough analysis of the notion of consent in Regulation 2016/679, the

General Data Protection Regulation (hereafter: GDPR). The concept of consent as used in the Data

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References to “Member States” made throughout this document should be understood as references to “EEA

Member States”.adopted

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Protection Directive (hereafter: Directive 95/46/EC) and in the e-Privacy Directive to date, has evolved.

The GDPR provides further clarification and specification of the requirements for obtaining and demonstrating valid consent. These Guidelines focus on these changes, providing practical guidance to ensure compliance with the GDPR and building upon the Article 29 Working Party Opinion 15/2011 on consent. The obligation is on controllers to innovate to find new solutions that operate within the parameters of the law and better support the protection of personal data and the interests of data subjects.

2.

Consent remains one of six lawful bases to process personal data, as listed in Article 6 of the GDPR.²

When initiating activities that involve processing of personal data, a controller must always take time

to consider what would be the appropriate lawful ground for the envisaged processing.

3.

Generally, consent can only be an appropriate lawful basis if a data subject is offered control and is

offered a genuine choice with regard to accepting or declining the terms offered or declining them

without detriment. When asking for consent, a controller has the duty to assess whether it will meet

all the requirements to obtain valid consent. If obtained in full compliance with the GDPR, consent is

a tool that gives data subjects control over whether or not personal data concerning them will be

processed. If not, the data subject's control becomes illusory and consent will be an invalid basis for

processing, rendering the processing activity unlawful.³

4.

The existing Article 29 Working Party (WP29) Opinions on consent⁴ remain relevant, where consistent

with the new legal framework, as the GDPR codifies existing WP29 guidance and general good practice

and most of the key elements of consent remain the same under the GDPR. Therefore, in this

document, the EDPB expands upon and completes earlier Article 29 Working Party Opinions on specific

topics that include reference to consent under Directive 95/46/EC, rather than replacing them.

5.

As the WP29 stated in its Opinion 15/2011 on the definition on consent, inviting people to accept a

data processing operation should be subject to rigorous requirements, since it concerns the fundamental rights of data subjects and the controller wishes to engage in a processing operation that

would be unlawful without the data subject's consent.⁵ The crucial role of consent is underlined by Articles 7 and 8 of the Charter of Fundamental Rights of the European Union. Furthermore, obtaining consent also does not negate or in any way diminish the controller's obligations to observe the principles of processing enshrined in the GDPR, especially Article 5 of the GDPR with regard to fairness, necessity and proportionality, as well as data quality. Even if the processing of personal data is based on consent of the data subject, this would not legitimise collection of data, which is not necessary in relation to a specified purpose of processing and be fundamentally unfair.⁶

² Article 9 GDPR provides a list of possible exemptions to the ban on processing special categories of data. One of the exemptions listed is the situation where the data subject provides explicit consent to the use of this data.

³ See also Article 29 Working Party Opinion 15/2011 on the definition of consent (WP 187), pp. 6-8, and/or Opinion 06/2014 on the notion of legitimate interests of the data controller under Article 7 of Directive 95/46/EC (WP 217), pp. 9, 10, 13 and 14.

⁴ Most notably, Opinion 15/2011 on the definition of consent (WP 187).

⁵ Opinion 15/2011, page on the definition of consent (WP 187), p. 8.

⁶ See also Opinion 15/2011 on the definition of consent (WP 187), and Article 5 GDPR.adopted

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6.

Meanwhile, the EDPB is aware of the review of the ePrivacy Directive (2002/58/EC). The notion of consent in the draft ePrivacy Regulation remains linked to the notion of consent in the GDPR.⁷

Organisations are likely to need consent under the ePrivacy instrument for most online marketing messages or marketing calls, and online tracking methods including by the use of cookies or apps or other software. The EDPB has already provided recommendations and guidance to the European legislator on the Proposal for a Regulation on ePrivacy.⁸

7.

With regard to the existing e-Privacy Directive, the EDPB notes that references to the repealed Directive 95/46/EC shall be construed as references to the GDPR.⁹ This also applies to references to consent in the current Directive 2002/58/EC, as the ePrivacy Regulation will not (yet) be in force from 25 May 2018. According to Article 95 GDPR, additional obligations in relation to processing in connection with the provision of publicly available electronic communications services in public communication networks shall not be imposed insofar the e-Privacy Directive imposes specific

obligations with the same objective. The EDPB notes that the requirements for consent under the GDPR are not considered to be an 'additional obligation', but rather as preconditions for lawful processing. Therefore, the GDPR conditions for obtaining valid consent are applicable in situations falling within the scope of the e-Privacy Directive.

2 CONSENT IN ARTICLE 4(11) OF THE GDPR

8.

Article 4(11) of the GDPR defines consent as: *"any freely given, specific, informed and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her."*

9.

The basic concept of consent remains similar to that under the Directive 95/46/EC and consent is one of the lawful grounds on which personal data processing has to be based, pursuant to Article 6 of the GDPR.¹⁰ Besides the amended definition in Article 4(11), the GDPR provides additional guidance in Article 7 and in recitals 32, 33, 42, and 43 as to how the controller must act to comply with the main elements of the consent requirement.

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According to Article 9 of the proposed ePrivacy Regulation, the definition of and the conditions for consent provided for in Articles 4(11) and Article 7 of the GDPR apply.

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See [EDPB statement on ePrivacy - 25/05/2018](#) and [EDPB Statement 3/2019 on an ePrivacy regulation](#).

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See Article 94 GDPR.

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Consent was defined in Directive 95/46/EC as *"any freely given specific and informed indication of his wishes by which the data subject signifies his agreement to personal data relating to him being processed"* which must be *'unambiguously given'* in order to make the processing of personal data legitimate (Article 7(a) of Directive 95/46/EC)). See WP29 Opinion 15/2011 on the definition of consent (WP 187) for examples on the appropriateness of consent as lawful basis. In this Opinion, WP29 has provided guidance to distinguish where consent is an appropriate lawful basis from those where relying on the legitimate interest ground (perhaps with an opportunity to opt out) is sufficient or a contractual relation would be recommended. See also WP29 Opinion 06/2014, paragraph III.1.2, p. 14 and further. Explicit consent is also one of the exemptions to the prohibition on the processing of special categories of data: See Article 9 GDPR.adopted

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10. Finally, the inclusion of specific provisions and recitals on the withdrawal of consent confirms that consent should be a reversible decision and that there remains a degree of control on the side of the data subject.

3 ELEMENTS OF VALID CONSENT

11. Article 4(11) of the GDPR stipulates that consent of the data subject means any:

- freely given,
- specific,
- informed and
- unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her.

12. In the sections below, it is analysed to what extent the wording of Article 4(11) requires controllers to change their consent requests/forms, in order to ensure compliance with the GDPR.¹¹

3.1 Free / freely given¹²

13. The element “free” implies real choice and control for data subjects. As a general rule, the GDPR

prescribes that if the data subject has no real choice, feels compelled to consent or will endure negative

consequences if they do not consent, then consent will not be valid.¹³ If consent is bundled up as a

non-negotiable part of terms and conditions it is presumed not to have been freely given.

Accordingly,

consent will not be considered to be free if the data subject is unable to refuse or withdraw his or her

consent without detriment.¹⁴ The notion of imbalance between the controller and the data subject is

also taken into consideration by the GDPR.

14. When assessing whether consent is freely given, one should also take into account the specific

situation of tying consent into contracts or the provision of a service as described in Article 7(4). Article

7(4) has been drafted in a non-exhaustive fashion by the words “inter alia”, meaning that there may

be a range of other situations, which are caught by this provision. In general terms, any element of

¹¹ For guidance with regard to ongoing processing activities based on consent in Directive 95/46, see chapter 7 of this document and recital 171 of the GDPR.

¹² In several opinions, the Article 29 Working Party has explored the limits of consent in situations where it cannot be freely given. This was notably the case in its Opinion 15/2011 on the definition of consent (WP 187), Working Document on the processing of personal data relating to health in electronic health records (WP 131), Opinion 8/2001 on the processing of personal data in the employment context (WP48), and Second opinion 4/2009 on processing of data by the World Anti-Doping Agency (WADA) (International Standard for the Protection of Privacy and Personal Information, on related provisions of the WADA Code and on other privacy issues in the context of the fight against doping in sport by WADA and (national) anti-doping organizations (WP 162).

¹³ See Opinion 15/2011 on the definition of consent (WP187), p. 12.

¹⁴ See Recitals 42, 43 GDPR and WP29 Opinion 15/2011 on the definition of consent, adopted on 13 July 2011,

(WP 187), p. 12.adopted

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inappropriate pressure or influence upon the data subject (which may be manifested in many different ways) which prevents a data subject from exercising their free will, shall render the consent invalid.

15. Example 1: A mobile app for photo editing asks its users to have their GPS localisation activated for the use of its services. The app also tells its users it will use the collected data for behavioural advertising purposes. Neither geolocalisation or online behavioural advertising are necessary for the provision of the photo editing service and go beyond the delivery of the core service provided. Since users cannot use the app without consenting to these purposes, the consent cannot be considered as being freely given.

3.1.1 Imbalance of power

16. Recital 43¹⁵ clearly indicates that it is unlikely that **public authorities** can rely on consent for processing as whenever the controller is a public authority, there is often a clear imbalance of power in the relationship between the controller and the data subject. It is also clear in most cases that the data subject will have no realistic alternatives to accepting the processing (terms) of this controller. The EDPB considers that there are other lawful bases that are, in principle, more appropriate to the activity of public authorities.¹⁶

17. Without prejudice to these general considerations, the use of consent as a lawful basis for data processing by public authorities is not totally excluded under the legal framework of the GDPR. The following examples show that the use of consent can be appropriate under certain circumstances.

18. Example 2: A local municipality is planning road maintenance works. As the road works may disrupt traffic for a long time, the municipality offers its citizens the opportunity to subscribe to an email list to receive updates on the progress of the works and on expected delays. The municipality makes clear that there is no obligation to participate and asks for consent to use email addresses for this (exclusive) purpose. Citizens that do not consent will not miss out on any core service of the municipality or the exercise of any right, so they are able to give or refuse their consent to this use of data freely. All

information on the road works will also be available on the municipality's website.

19. Example 3: An individual who owns land needs certain permits from both her local municipality and

from the provincial government under which the municipality resides. Both public bodies require the same information for issuing their permit, but are not accessing each other's databases. Therefore, both ask for the same information and the land owner sends out her details to both public bodies. The municipality and the provincial authority ask for her consent to merge the files, to avoid duplicate procedures and correspondence. Both public bodies ensure that this is optional and that the permit requests will still be processed separately if she decides not to consent to the merger of her data. The land owner is able to give consent to the authorities for the purpose of merging the files freely.

¹⁵

Recital 43 GDPR states: *"In order to ensure that consent is freely given, consent should not provide a valid legal ground for the processing of personal data in a specific case where there is a clear imbalance between the data subject and the controller, in particular where the controller is a public authority and it is therefore unlikely that consent was freely given in all the circumstances of that specific situation. (...)".*

¹⁶

See Article 6 GDPR, notably paragraphs (1c) and (1e).adopted

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20. Example 4: A public school asks students for consent to use their photographs in a printed student magazine. Consent in these situations would be a genuine choice as long as students will not be denied education or services and could refuse the use of these photographs without any detriment.¹⁷

21. An imbalance of power also occurs in the **employment** context.¹⁸ Given the dependency that results from the employer/employee relationship, it is unlikely that the data subject is able to deny his/her employer consent to data processing without experiencing the fear or real risk of detrimental effects as a result of a refusal. It is unlikely that an employee would be able to respond freely to a request for consent from his/her employer to, for example, activate monitoring systems such as camera observation in a workplace, or to fill out assessment forms, without feeling any pressure to consent.¹⁹

Therefore, the EDPB deems it problematic for employers to process personal data of current or future employees on the basis of consent as it is unlikely to be freely given. For the majority of such data processing at work, the lawful basis cannot and should not be the consent of the employees (Article

6(1)(a)) due to the nature of the relationship between employer and employee.²⁰

22. However, this does not mean that employers can never rely on consent as a lawful basis for processing.

There may be situations when it is possible for the employer to demonstrate that consent actually is

freely given. Given the imbalance of power between an employer and its staff members, employees

can only give free consent in exceptional circumstances, when it will have no adverse consequences at

all whether or not they give consent.²¹

23. Example 5: A film crew is going to be filming in a certain part of an office. The employer asks all the

employees who sit in that area for their consent to be filmed, as they may appear in the background

of the video. Those who do not want to be filmed are not penalised in any way but instead are given

equivalent desks elsewhere in the building for the duration of the filming.

24. Imbalances of power are not limited to public authorities and employers, they may also occur in other

situations. As highlighted by the WP29 in several Opinions, consent can only be valid if the data subject

is able to exercise a real choice, and there is no risk of deception, intimidation, coercion or significant

negative consequences (e.g. substantial extra costs) if he/she does not consent. Consent will not be

free in cases where there is any element of compulsion, pressure or inability to exercise free will.

¹⁷

For the purposes of this example, a public school means a publically funded school or any educational facility

that qualifies as a public authority or body by national law.

¹⁸

See also Article 88 GDPR, where the need for protection of the specific interests of employees is emphasised

and a possibility for derogations in Member State law is created. See also Recital 155.

¹⁹

See Opinion 15/2011 on the definition of consent (WP 187), pp. 12-14 , Opinion 8/2001 on the processing of

personal data in the employment context (WP 48), Chapter 10, Working document on the surveillance of electronic communications in the workplace (WP 55), paragraph 4.2 and Opinion 2/2017 on data processing at

work (WP 249), paragraph 6.2.

²⁰

See Opinion 2/2017 on data processing at work, page 6-7.

²¹

See also Opinion 2/2017 on data processing at work (WP249), paragraph 6.2.adopted

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3.1.2

Conditionality

25. To assess whether consent is freely given, Article 7(4) GDPR plays an important role.²²

26. Article 7(4) GDPR indicates that, inter alia, the situation of “bundling” consent with acceptance of

terms or conditions, or “tying” the provision of a contract or a service to a request for consent to

process personal data that are not necessary for the performance of that contract or service, is

considered highly undesirable. If consent is given in this situation, it is presumed to be not freely given

(recital 43). Article 7(4) seeks to ensure that the purpose of personal data processing is not disguised

nor bundled with the provision of a contract of a service for which these personal data are not necessary. In doing so, the GDPR ensures that the processing of personal data for which consent is sought cannot become directly or indirectly the counter-performance of a contract. The two lawful bases for the lawful processing of personal data, i.e. consent and contract cannot be merged and blurred.

27. Compulsion to agree with the use of personal data additional to what is strictly necessary limits data subject's choices and stands in the way of free consent. As data protection law is aiming at the protection of fundamental rights, an individual's control over their personal data is essential and there is a strong presumption that consent to the processing of personal data that is unnecessary, cannot be seen as a mandatory consideration in exchange for the performance of a contract or the provision of a service.

28. Hence, whenever a request for consent is tied to the performance of a contract by the controller, a data subject that does not wish to make his/her personal data available for processing by the controller runs the risk to be denied services they have requested.

29. To assess whether such a situation of bundling or tying occurs, it is important to determine what the scope of the contract is and what data would be necessary for the performance of that contract.

30. According to Opinion 06/2014 of WP29, the term "necessary for the performance of a contract" needs to be interpreted strictly. The processing must be necessary to fulfil the contract with each individual data subject. This may include, for example, processing the address of the data subject so that goods purchased online can be delivered, or processing credit card details in order to facilitate payment. In the employment context, this ground may allow, for example, the processing of salary information and bank account details so that wages can be paid.²³ There needs to be a direct and objective link between the processing of the data and the purpose of the execution of the contract.

31. If a controller seeks to process personal data that are in fact necessary for the performance of a contract, then consent is not the appropriate lawful basis.²⁴

²²

Article 7(4) GDPR: "*When assessing whether consent is freely given, utmost account shall be taken of whether, inter alia, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract.*" See also Recital 43 GDPR,

that states: “[...] Consent is presumed not to be freely given if it does not allow separate consent to be given to different personal data processing operations despite it being appropriate in the individual case, or if the performance of a contract, including the provision of a service, is dependent on the consent, despite such consent not being necessary for such performance.”

²³

For more information and examples, see Opinion 06/2014 on the notion of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, adopted by WP29 on 9 April 2014, p. 16-17. (WP 217).

²⁴

The appropriate lawful basis could then be Article 6(1)(b) (contract).^{adopted}

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32. Article 7(4) is only relevant where the requested data are **not** necessary for the performance of the contract, (including the provision of a service), and the performance of that contract is made conditional on the obtaining of these data on the basis of consent. Conversely, if processing **is** necessary to perform the contract (including to provide a service), then Article 7(4) does not apply.

33. Example 6: A bank asks customers for consent to allow third parties to use their payment details for direct marketing purposes. This processing activity is not necessary for the performance of the contract with the customer and the delivery of ordinary bank account services. If the customer’s refusal to consent to this processing purpose would lead to the denial of banking services, closure of the bank account, or, depending on the case, an increase of the fee, consent cannot be freely given.

34. The choice of the legislator to highlight conditionality, amongst others, as a presumption of a lack of freedom to consent, demonstrates that the occurrence of conditionality must be carefully scrutinized.

The term “utmost account” in Article 7(4) suggests that special caution is needed from the controller

when a contract (which could include the provision of a service) has a request for consent to process personal data tied to it.

35. As the wording of Article 7(4) is not construed in an absolute manner, there might be very limited space for cases where this conditionality would not render the consent invalid. However, the word

“presumed” in Recital 43 clearly indicates that such cases will be highly exceptional.

36. In any event, the burden of proof in Article 7(4) is on the controller.²⁵ This specific rule reflects the general principle of accountability, which runs throughout the GDPR. However, when Article 7(4)

applies, it will be more difficult for the controller to prove that consent was given freely by the data subject.²⁶

37. The controller could argue that his organisation offers data subjects genuine choice if they were able to choose between a service that includes consenting to the use of personal data for additional

purposes on the one hand, and an equivalent service offered by the same controller that does not involve consenting to data use for additional purposes on the other hand. As long as there is a possibility to have the contract performed or the contracted service delivered by this controller without consenting to the other or additional data use in question, this means there is no longer a conditional service. However, both services need to be genuinely equivalent.

38. The EDPB considers that consent cannot be considered as freely given if a controller argues that a choice exists between its service that includes consenting to the use of personal data for additional purposes on the one hand, and an equivalent service offered by a different controller on the other hand. In such a case, the freedom of choice would be made dependent on what other market players do and whether an individual data subject would find the other controller's services genuinely

²⁵ See also Article 7(1) GDPR, which states that the controller needs to demonstrate that the data subject's agreement was freely given.

²⁶ To some extent, the introduction of this paragraph is a codification of existing WP29 guidance. As described in

Opinion 15/2011, when a data subject is in a situation of dependence on the data controller – due to the nature of the relationship or to special circumstances – there may be a strong presumption that freedom to consent is

limited in such contexts (e.g. in an employment relationship or if the collection of data is performed by a public authority). With Article 7(4) in force, it will be more difficult for the controller to prove that consent was given

freely by the data subject. See: Article 29 Working Party Opinion 15/2011 on the definition of consent (WP 187),

pp. 12-17.adopted

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equivalent. It would furthermore imply an obligation for controllers to monitor market developments

to ensure the continued validity of consent for their data processing activities, as a competitor may

alter its service at a later stage. Hence, using this argument means a consent relying on an alternative

option offered by a third party fails to comply with the GDPR, meaning that a service provider cannot

prevent data subjects from accessing a service on the basis that they do not consent.

39. In order for consent to be freely given, access to services and functionalities must not be made

conditional on the consent of a user to the storing of information, or gaining of access to information

already stored, in the terminal equipment of a user (so called cookie walls)²⁷.

40. Example 6a: A website provider puts into place a script that will block content from being visible except

for a request to accept cookies and the information about which cookies are being set and for what purposes data will be processed. There is no possibility to access the content without clicking on the “Accept cookies” button. Since the data subject is not presented with a genuine choice, its consent is not freely given.

41. This does not constitute valid consent, as the provision of the service relies on the data subject clicking the “Accept cookies” button. It is not presented with a genuine choice.

3.1.3 Granularity

42. A service may involve multiple processing operations for more than one purpose. In such cases, the data subjects should be free to choose which purpose they accept, rather than having to consent to a bundle of processing purposes. In a given case, several consents may be warranted to start offering a service, pursuant to the GDPR.

43. Recital 43 clarifies that consent is presumed not to be freely given if the process/procedure for obtaining consent does not allow data subjects to give separate consent for personal data processing operations respectively (e.g. only for some processing operations and not for others) despite it being appropriate in the individual case. Recital 32 states, “ *Consent should cover all processing activities carried out for the same purpose or purposes. When the processing has multiple purposes, consent should be given for all of them*” .

44. If the controller has conflated several purposes for processing and has not attempted to seek separate consent for each purpose, there is a lack of freedom. This granularity is closely related to the need of consent to be specific, as discussed in section 3.2 further below. When data processing is done in pursuit of several purposes, the solution to comply with the conditions for valid consent lies in granularity, i.e. the separation of these purposes and obtaining consent for each purpose.

45. Example 7: Within the same consent request a retailer asks its customers for consent to use their data to send them marketing by email and also to share their details with other companies within their group. This consent is not granular as there is no separate consents for these two separate purposes, therefore the consent will not be valid. In this case, a specific consent should be collected to send the contact details to commercial partners. Such specific consent will be deemed valid for each partner (see also section 3.3.1), whose identity has been provided to the data subject at the time of the

collection of his or her consent, insofar as it is sent to them for the same purpose (in this example: a marketing purpose).

²⁷

As clarified above, the GDPR conditions for obtaining valid consent are applicable in situations falling within the scope of the e-Privacy Directive.^{adopted}

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3.1.4 Detriment

46. The controller needs to demonstrate that it is possible to refuse or withdraw consent without detriment (recital 42). For example, the controller needs to prove that withdrawing consent does not

lead to any costs for the data subject and thus no clear disadvantage for those withdrawing consent.

47. Other examples of detriment are deception, intimidation, coercion or significant negative

consequences if a data subject does not consent. The controller should be able to prove that the data

subject had a free or genuine choice about whether to consent and that it was possible to withdraw

consent without detriment.

48. If a controller is able to show that a service includes the possibility to withdraw consent without any

negative consequences e.g. without the performance of the service being downgraded to the

detriment of the user, this may serve to show that the consent was given freely. The GDPR does not

preclude all incentives but the onus would be on the controller to demonstrate that consent was still

freely given in all the circumstances.

49. Example 8: When downloading a lifestyle mobile app, the app asks for consent to access the phone's

accelerometer. This is not necessary for the app to work, but it is useful for the controller who wishes

to learn more about the movements and activity levels of its users. When the user later revokes that

consent, she finds out that the app now only works to a limited extent. This is an example of detriment

as meant in Recital 42, which means that consent was never validly obtained (and thus, the controller

needs to delete all personal data about users' movements collected this way).

50. Example 9: A data subject subscribes to a fashion retailer's newsletter with general discounts. The

retailer asks the data subject for consent to collect more data on shopping preferences to tailor the

offers to his or her preferences based on shopping history or a questionnaire that is voluntary to fill

out. When the data subject later revokes consent, he or she will receive non-personalised fashion

discounts again. This does not amount to detriment as only the permissible incentive was lost.

51. Example 10: A fashion magazine offers readers access to buy new make-up products before the official launch.

52. The products will shortly be made available for sale, but readers of this magazine are offered an exclusive preview of these products. In order to enjoy this benefit, people must give their postal address and agree to subscription on the mailing list of the magazine. The postal address is necessary for shipping and the mailing list is used for sending commercial offers for products such as cosmetics or t-shirts year round.

53. The company explains that the data on the mailing list will only be used for sending merchandise and paper advertising by the magazine itself and is not to be shared with any other organisation.

54. In case the reader does not want to disclose their address for this reason, there is no detriment, as the products will be available to them anyway.

3.2 Specific

55. Article 6(1)(a) confirms that the consent of the data subject must be given in relation to "one or more specific" purposes and that a data subject has a choice in relation to each of them.²⁸ The requirement

²⁸ Further guidance on the determination of 'purposes' can be found in Opinion 3/2013 on purpose limitation (WP 203).adopted

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that consent must be '*specific*' aims to ensure a degree of user control and transparency for the data

subject. This requirement has not been changed by the GDPR and remains closely linked to the

requirement of 'informed' consent. At the same time, it must be interpreted in line with the requirement for 'granularity' to obtain 'free' consent.²⁹ In sum, to comply with the element of 'specific'

the controller must apply:

i

Purpose specification as a safeguard against function creep,

ii Granularity in consent requests, and

iii Clear separation of information related to obtaining consent for data processing activities from

information about other matters.

56.

Ad. (i): Pursuant to Article 5(1)(b) GDPR, obtaining valid consent is always preceded by the determination of a specific, explicit and legitimate purpose for the intended processing activity.³⁰ The

need for specific consent in combination with the notion of purpose limitation in Article 5(1)(b)

functions as a safeguard against the gradual widening or blurring of purposes for which data is

processed, after a data subject has agreed to the initial collection of the data. This phenomenon, also

known as function creep, is a risk for data subjects, as it may result in unanticipated use of personal

data by the controller or by third parties and in loss of data subject control.

57. If the controller is relying on Article 6(1)(a), data subjects must always give consent for a specific

processing purpose.³¹ In line with the concept of *purpose limitation*, Article 5(1)(b) and recital 32,

consent may cover different operations, as long as these operations serve the same purpose.

It goes

without saying that specific consent can only be obtained when data subjects are specifically informed

about the intended purposes of data use concerning them.

58. Notwithstanding the provisions on compatibility of purposes, consent must be specific to the purpose.

Data subjects will give their consent with the understanding that they are in control and their data will

only be processed for those specified purposes. If a controller processes data based on consent and

wishes to process the data for another purpose, too, that controller needs to seek additional consent

for this other purpose unless there is another lawful basis, which better reflects the situation.

59. Example 11: A cable TV network collects subscribers' personal data, based on their consent, to present

them with personal suggestions for new movies they might be interested in based on their viewing

habits. After a while, the TV network decides it would like to enable third parties to send (or display)

targeted advertising on the basis of the subscriber's viewing habits. Given this new purpose, new

consent is needed.

60. **Ad. (ii):** Consent mechanisms must not only be granular to meet the requirement of 'free', but also to

meet the element of 'specific'. This means, a controller that seeks consent for various different

²⁹

Recital 43 GDPR states that separate consent for different processing operations will be needed wherever appropriate.

Granular consent options should be provided to allow data subjects to consent separately to separate purposes.

³⁰

See WP 29 Opinion 3/2013 on purpose limitation (WP 203), p. 16, : "*For these reasons, a purpose that is vague*

or general, such as for instance 'improving users' experience', 'marketing purposes', 'IT-security purposes' or 'future research' will - without more detail - usually not meet the criteria of being 'specific'."

³¹

This is consistent with WP29 Opinion 15/2011 on the definition of consent (WP 187), for example on p.

17.adopted

15

purposes should provide a separate opt-in for each purpose, to allow users to give specific consent for

specific purposes.

61. **Ad. (iii):** Lastly, controllers should provide specific information with each separate consent request

about the data that are processed for each purpose, in order to make data subjects aware of the impact of the different choices they have. Thus, data subjects are enabled to give specific consent. This issue overlaps with the requirement that controllers must provide clear information, as discussed in paragraph 3.3. below.

3.3 Informed

62. The GDPR reinforces the requirement that consent must be informed. Based on Article 5 of the GDPR, the requirement for transparency is one of the fundamental principles, closely related to the principles of fairness and lawfulness. Providing information to data subjects prior to obtaining their consent is essential in order to enable them to make informed decisions, understand what they are agreeing to, and for example exercise their right to withdraw their consent. If the controller does not provide accessible information, user control becomes illusory and consent will be an invalid basis for processing.

63. The consequence of not complying with the requirements for informed consent is that consent will be invalid and the controller may be in breach of Article 6 of the GDPR.

3.3.1

Minimum content requirements for consent to be 'informed'

64. For consent to be informed, it is necessary to inform the data subject of certain elements that are crucial to make a choice. Therefore, the EDPB is of the opinion that at least the following information is required for obtaining valid consent:

- i. the controller's identity,³²
- ii. the purpose of each of the processing operations for which consent is sought,³³
- iii. what (type of) data will be collected and used,³⁴
- iv. the existence of the right to withdraw consent,³⁵
- v. information about the use of the data for automated decision-making in accordance with Article 22 (2)(c)³⁶ where relevant, and

³² See also Recital 42 GDPR: "[...]For consent to be informed, the data subject should be aware at least of the identity of the controller and the purposes of the processing for which the personal data are intended.[...]."

³³ Again, see Recital 42 GDPR.

³⁴ See also WP29 Opinion 15/2011 on the definition of consent (WP 187) pp.19-20.

³⁵ See Article 7(3) GDPR.

³⁶ See also WP29 Guidelines on Automated individual decision-making and Profiling for the purposes of Regulation 2016/679 (WP251), paragraph IV.B, p. 20 onwards.adopted

vi.

on the possible risks of data transfers due to absence of an adequacy decision and of appropriate safeguards as described in Article 46.³⁷

65. With regard to item (i) and (iii), the EDPB notes that in a case where the consent sought is to be relied

upon by multiple (joint) controllers or if the data is to be transferred to or processed by other

controllers who wish to rely on the original consent, these organisations should all be named.

Processors do not need to be named as part of the consent requirements, although to comply with

Articles 13 and 14 of the GDPR, controllers will need to provide a full list of recipients or categories of

recipients including processors. To conclude, the EDPB notes that depending on the circumstances and

context of a case, more information may be needed to allow the data subject to genuinely understand

the processing operations at hand.

[3.3.2 How to provide information](#)

66. The GDPR does not prescribe the form or shape in which information must be provided in order to

fulfil the requirement of informed consent. This means valid information may be presented in various

ways, such as written or oral statements, or audio or video messages. However, the GDPR puts several

requirements for informed consent in place, predominantly in Article 7(2) and Recital 32.

This leads to

a higher standard for the clarity and accessibility of the information.

67. When seeking consent, controllers should ensure that they use clear and plain language in all cases.

This means a message should be easily understandable for the average person and not only for

lawyers. Controllers cannot use long privacy policies that are difficult to understand or statements full

of legal jargon. Consent must be clear and distinguishable from other matters and provided in an

intelligible and easily accessible form. This requirement essentially means that information relevant

for making informed decisions on whether or not to consent may not be hidden in general terms and

conditions.³⁸

68. A controller must ensure that consent is provided on the basis of information that allows the data

subjects to easily identify who the controller is and to understand what they are agreeing to. The

controller must clearly describe the purpose for data processing for which consent is requested.³⁹

69. Other specific guidance on the accessibility has been provided in the WP29 guidelines on transparency.

If consent is to be given by electronic means, the request must be clear and concise. Layered and

granular information can be an appropriate way to deal with the two-fold obligation of being precise

and complete on the one hand and understandable on the other hand.

70. A controller must assess what kind of audience it is that provides personal data to their organisation.

For example, in case the targeted audience includes data subjects that are underage, the controller is

expected to make sure information is understandable for minors.⁴⁰ After identifying their audience,

³⁷

Pursuant to Article 49 (1)(a), specific information is required about the absence of safeguards described in Article 46, when explicit consent is sought. See also WP29 Opinion 15/2011 on the definition of consent (WP

187)p. 19.

³⁸

The declaration of consent must be named as such. Drafting, such as “I know that...” does not meet the requirement of clear language.

³⁹

See Articles 4(11) and 7(2) GDPR.

⁴⁰

See also Recital 58 regarding information understandable for children.